

Particulars of claim for possession

(rented residential premises)

Name of court	Claim No.
Name of Claimant	
Name of Defendant	

1. The claimant has a right to possession of:
2. To the best of the claimant's knowledge the following persons are in possession of the property:

About the tenancy

3. (a) The premises are let to the defendant(s) under a(n) _____ tenancy which began on _____.
- (b) The current rent is £ _____ and is payable each (week) (fortnight) (month).
(other _____)
- (c) Any unpaid rent or charge for use and occupation should be calculated at £ _____ per day.
4. The reason the claimant is asking for possession is:
 - (a) because the defendant has not paid the rent due under the terms of the tenancy agreement.
(Details are set out below)(Details are shown on the attached rent statement)
 - (b) because the defendant has failed to comply with other terms of the tenancy.
Details are set out below.
 - (c) because: (including any (other) statutory grounds)

5. The following steps have already been taken to recover any arrears:

6. The appropriate (notice to quit) (notice of breach of lease) (notice seeking possession) (notice seeking a demotion order) (other) was served on the defendant on 20 .

About the defendant

7. The following information is known about the defendant's circumstances:

About the claimant

8. The claimant is asking the court to take the following financial or other information into account when making its decision whether or not to grant an order for possession:

Forfeiture

9. (a) There is no underlessee or mortgagee entitled to claim relief against forfeiture.

or (b) of

is entitled to claim relief against forfeiture as underlessee or mortgagee.

What the court is being asked to do:

10. The claimant asks the court to order that the defendant(s):
- (a) give the claimant possession of the premises;
 - (b) pay the unpaid rent and any charge for use and occupation up to the date an order is made;
 - (c) pay rent and any charge for use and occupation from the date of the order until the claimant recovers possession of the property;
 - (d) pay the claimant's costs of making this claim.
11. In the alternative to possession, is the claimant asking the court to make a demotion order or an order suspending the right to buy?
- ☐ Yes ☐ No

Demotion/Suspension claim

This section must be completed if the claim includes a claim for demotion of tenancy or suspension order in the alternative to possession

12. The (demotion) (suspension) claim is made under:

- ☐ section 82A(2) of the Housing Act 1985
- ☐ section 6A(2) of the Housing Act 1988
- ☐ section 121A of the Housing Act 1985

13. The claimant is a:

- ☐ local authority ☐ housing action trust
- ☐ registered social landlord
or a private registered
provider of social housing ☐ other please specify (suspension claims only)

(Demotion claims only)

14. Has the claimant served on the tenant a statement of express terms of the tenancy which are to apply to the demoted tenancy?

- ☐ Yes ☐ No

If Yes, please give details:

15. The claimant is claiming delete as appropriate (demotion of tenancy) (and) (an order suspending the right to buy) because: State details of the conduct alleged and **any** other matters relied upon.

Statement of Truth

I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

- ☐ **I believe** that the facts stated in these particulars of claim are true.
- ☐ **The Claimant** believes that the facts stated in these particulars of claim are true. **I am authorised** by the claimant to sign this statement.

Signature

- ☐ Claimant
- ☐ Litigation friend (where claimant is a child or a patient)
- ☐ Claimant's legal representative (as defined by CPR 2.3(1))

Date

Day

Month

Year

Full name

Name of claimant's legal representative's firm

If signing on behalf of firm or company give position or office held